

Rajesh Kumar Agarawal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 December 2018 · WRIT-C No. 41375 of 2018 · Writ-C No. 41375 of 2018 · **Writ disposed; petitioner relegated to Clause 6.5.**

HEADNOTE

A Division Bench of the Allahabad High Court declined to entertain a writ petition disputing the correctness of an electricity bill, holding that Clause 6.5 of the U.P. Electricity Supply Code, 2005 afforded a statutory remedy. The petition was disposed of with the observation that if the petitioner approached the Executive Engineer within ten days, the application be decided by a speaking order after hearing, preferably within fifteen days.

FACTUAL SUMMARY

Rajesh Kumar Agarawal filed a writ petition in the Allahabad High Court seeking a mandamus directing the electricity authorities to take the original electric bill as per the meter reading shown and to allow him to pay the dues in easy installments. He disputed the correctness of the bill raised against him. Counsel for the petitioner and the Electricity Department were heard. The Division Bench considered whether the writ should be entertained given the statutory remedy under the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

A writ petition raising a dispute as to the correctness of an electricity bill is not entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 affords a statutory remedy; the consumer may approach the Executive Engineer, and the application is to be considered and decided by a speaking order after hearing, in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL RAISED AGAINST THE PETITIONER

Left to the Executive Engineer under Clause 6.5. ¶ 1

NOT DECIDED — WHETHER DUES MAY BE PAID IN EASY INSTALLMENTS

Writ prayer not decided on merits. ¶ 1